

SECTION 8

Jordan's Principle

The child whose death named the principle, the twenty-year legal compliance battle, the 140,000-application backlog, the February 2025 operational bulletin that cut services to First Nations children while they were waiting, and why this matters specifically for Indigenous disabled children in Alberta

Jordan River Anderson was cleared by his doctors to leave hospital at the age of two. The federal and provincial governments argued for three more years over who would pay for his home care. He died in the hospital at the age of five, having never seen his family's home on Norway House Cree Nation. The principle named for him was supposed to guarantee that no First Nations child would ever again be denied care while governments argued about jurisdiction. Twenty years later, 140,000 requests are in backlog, denials doubled from \$216 million to \$491 million in a single fiscal year, and the federal government's own February 2025 operational bulletin restricted what First Nations children can even apply for."

This section documents the Jordan's Principle file as it stands in April 2026. Section 3 established Jordan's Principle as the jurisdictional fracture case study in this report. Section 8 documents the substance: the child whose death named the principle, the twenty-year legal compliance battle between First Nations advocates and the federal government, the scale of the current backlog, the February 2025 operational bulletin that functioned as a service reduction, the documented impacts on Indigenous disabled children specifically, and the Alberta-specific dimensions — including the education assistant layoffs in Alberta and Saskatchewan school divisions that followed the February 2025 policy shift.

Four findings structure the section. First, that Jordan's Principle is not a discretionary federal program but a legal obligation imposed on Canada by a sustained series of Canadian Human Rights Tribunal orders since 2016, following the 2007 unanimous House of Commons motion M-296. Second, that the federal government has been found in non-compliance with those orders repeatedly and remains in non-compliance as of the publication of this report. Third, that the February 10, 2025 operational bulletin issued by Indigenous Services Canada, which narrowed the scope of services eligible under Jordan's Principle, coincided with a doubling of denial values from \$216 million in fiscal 2023-24 to \$491 million in fiscal 2024-25, and a decline in total approved services for the first time since 2020. Fourth, that these administrative changes, together with the ongoing backlog, produce documented harm to Indigenous disabled

children — the same population whose disability outcomes Sections 1 through 7 have established are structurally produced by federal and provincial policy failure.

Part 1: Jordan River Anderson

The child

Jordan River Anderson was born in 1999 in Norway House Cree Nation, a community on the northeast shore of Lake Winnipeg in Manitoba. He was born with Carey-Fineman-Ziter syndrome, a rare genetic muscular disorder producing complex medical needs. From birth, Jordan required hospital-level care. He was admitted to the Winnipeg Children's Hospital, more than 800 kilometres from his family's home.

At age two, Jordan's condition was stabilized. His medical team at the Winnipeg Children's Hospital determined that his needs could be met in a specialized home near the hospital, closer to his family. The medical determination was made. The clearance to leave the hospital was given. The pathway home required the funding of his at-home specialized care. That funding required the federal government and the Manitoba provincial government to agree on who would pay.

They did not agree. The federal government took the position, under section 91(24) of the Constitution Act 1867, that Indians and lands reserved for Indians were federal jurisdiction but that home-based services on or off reserve were not clearly covered by specific federal programs. The Manitoba provincial government took the position, under section 92 of the Constitution Act 1867, that health services were provincial jurisdiction but that services delivered to Status First Nations persons, particularly those ordinarily resident on reserve, were federal responsibility. Both positions had legal basis. Neither position produced care for Jordan.

The dispute continued for three years. During those three years, Jordan remained in the Winnipeg Children's Hospital. His care needs did not pause. His family could not bring him home. His father Ernest Anderson, his mother, his five sisters and six brothers visited when they could. Jordan never went home. On February 2, 2005, at the age of five, Jordan River Anderson died in the Winnipeg Children's Hospital.

Jordan River Anderson was medically cleared to leave the hospital three years before his death. The reason he remained in the hospital for those three years was not medical. It was jurisdictional. He died inside the dispute between two levels of government over whose responsibility he was. He was five years old. He never saw Norway House."

His sister Jerleen Sullivan: "He is our hero."

In 2025, Jordan's sister Jerleen Sullivan spoke at a memorial gathering for her brother: "I want everybody to remember that Jordan was loved by his whole family. He had a mother, he had a father, he has 5 sisters and 6 brothers and we all cared about him very much and we all wanted him back home. We see Jordan's spirit everywhere, in all these children that gathered here today. He is fighting from the spirit world, he is a spirit warrior. He is our hero and he fights for every First Nations child in Canada."

Jordan's father Ernest Anderson has continued to advocate for the principle named after his son. In February 2025, following the Indigenous Services Canada operational bulletin narrowing Jordan's Principle scope, Ernest Anderson recorded a video statement: "We need to talk. We need some answers. We need a meeting." The Anderson family has joined national First Nations leaders in calling for emergency federal response to the state of the program named for their son.

Part 2: From motion to legal obligation

Motion M-296 (2007)

In 2007, two years after Jordan's death, NDP MP Jean Crowder introduced a motion in the House of Commons. Motion M-296 stated that the government should immediately adopt a child-first principle, based on Jordan's Principle, to resolve jurisdictional disputes involving the care of First Nations children. The motion passed unanimously on December 12, 2007. The unanimous passage was significant: every party in the House of Commons, government and opposition, agreed that the circumstances of Jordan's death must not recur.

The motion was not, however, binding law. It was a statement of parliamentary intent. Between 2007 and 2016, First Nations advocates documented continuing jurisdictional disputes affecting specific children. The First Nations Child and Family Caring Society, led by Dr. Cindy Blackstock, together with the Assembly of First Nations, filed a complaint with the Canadian Human Rights Tribunal arguing that Canada's continued administrative failure to implement Jordan's Principle constituted racial discrimination against First Nations children.

The 2016 CHRT ruling and the non-compliance decade

On January 26, 2016, the Canadian Human Rights Tribunal released its decision in First Nations Child and Family Caring Society v Canada. The Tribunal found that the Government of Canada's implementation of Jordan's Principle resulted in discrimination against First Nations children and youth on the basis of race and national ethnic origin. The Tribunal ordered Canada to "cease applying its narrow definition of Jordan's Principle and to take measures to immediately implement the full meaning and scope of Jordan's Principle."

The 2016 ruling established that Jordan's Principle was not a discretionary program subject to federal budget constraints. It was a legal obligation of the Government of Canada arising from the Crown's fiduciary duty to First Nations children and from the anti-discrimination framework of

the Canadian Human Rights Act. The Tribunal was explicit: Jordan's Principle is not a fixed-budget program. Funding must expand with the number of eligible children. Services cannot be denied on the basis of cost.

Between 2016 and 2026, the Canadian Human Rights Tribunal has issued numerous remedial non-compliance orders against Canada for failing to abide by the original decision. The Tribunal's December 2024 ruling, in response to a non-compliance motion filed by the Caring Society early in 2024, ordered Canada to address the 140,000-application backlog and to establish an independent complaints mechanism. The federal government's public response, reported in CBC News, was that the order would be "challenging" to implement. The Caring Society subsequently filed further non-compliance motions.

As of April 2026, Canada remains in legal non-compliance with Canadian Human Rights Tribunal orders on Jordan's Principle dating back to 2016. The non-compliance is not contested. The federal government has not argued that it is in compliance. It has argued, variously, that compliance is administratively difficult, that the scope of Jordan's Principle has become too broad, and that budget pressures require service restriction.

Canada is choosing not to comply with the legal orders, and that means disruptions in services, denials, long wait times, and what we're really seeing from Canada is a lot of excuses, instead of compliance. — Dr. Cindy Blackstock, Executive Director, First Nations Child and Family Caring Society, The Tyee, April 25, 2025"

Part 3: The February 2025 operational bulletin and what it produced

The bulletin

On February 10, 2025, Indigenous Services Canada, under then-Minister Patty Hajdu, issued an operational bulletin narrowing the scope of services eligible under Jordan's Principle. The bulletin barred funding approvals for categories of request that had previously been approved under the program. The excluded categories specifically included:

- Home renovations, environmental and home repairs, and home modifications
- Sporting events, elite sports training, and athletic fees
- International travel
- Non-medical supports generally
- School-related requests, including education assistants, unless "linked to the specific health, social or educational needs of the First Nations child" and required to ensure substantive equality with children who are not First Nations

The stated rationale, drawn from the Canadian Human Rights Tribunal's own "substantive equality" framework, was that Jordan's Principle should provide services to ensure First Nations children receive equal treatment with non-Indigenous children — not services that non-Indigenous children would not ordinarily receive. The practical effect, documented across multiple First Nations communities and confirmed in APTN News reporting of October 2025, was a categorical exclusion applied before individual circumstances were assessed.

Critically, as documented by Cindy Blackstock in access-to-information materials obtained by the Caring Society: at the time the February 2025 bulletin invoked "substantive equality" as its rationale, Indigenous Services Canada had no working definition of "substantive equality" on file. The term had been removed from the department's public website. The legal concept being used to deny services to First Nations children was operationally undefined within the department issuing the denials.

What the bulletin produced

APTN News obtained, through an access-to-information request, internal Indigenous Services Canada data showing the financial impact of the February 2025 operational bulletin. The data covered the fiscal year ending April 30, 2025:

- Funding for Jordan's Principle declined for the first time since 2020, from \$1.72 billion in fiscal 2023-24 to \$1.64 billion in fiscal 2024-25 — a decline of approximately \$83 million.
- The value of denials more than doubled in the same period, from \$216 million to \$491 million — an increase of approximately \$275 million.
- The application backlog, which was 140,000 when the operational bulletin was issued, did not meaningfully decrease. New applications continued to arrive. Denied applications were not processed further.

The arithmetic is straightforward. In the fiscal year during which the federal government claimed to be addressing the backlog through administrative reform, approved services declined by \$83 million and denied services increased by \$275 million. The net redirection of funding away from First Nations children in a single fiscal year was approximately \$358 million.

In the fiscal year Indigenous Services Canada said it was reforming Jordan's Principle to address the backlog, approved services declined by \$83 million and denials increased by \$275 million. The net redirection of funding away from First Nations children was approximately \$358 million in a single year."

The Alberta dimension — school division layoffs

Between December 2024 and February 2025, as the operational bulletin was being prepared and then issued, public school districts in Alberta and Saskatchewan announced layoffs of

hundreds of education assistants. The positions had been funded through Jordan's Principle approvals supporting First Nations children with educational needs. When the operational bulletin narrowed the eligible categories for school-related requests, the underlying approvals supporting those education assistant positions were affected. Saskatoon Public Schools announced the ending of contracts for approximately 80 temporary education assistants. Alberta school divisions announced comparable reductions. The children whose educational supports had been funded did not stop needing the supports. The positions funding those supports simply ended.

This pattern — First Nations children losing educational support in provincial school systems because federal Jordan's Principle approvals narrowed — illustrates the jurisdictional fracture from Section 3 in operational form. Education in Canada is a provincial responsibility under section 93 of the Constitution Act 1867. Indigenous children's federal status places them under section 91(24). The educational needs of an Indigenous child in an Alberta school sit at the exact intersection where neither level of government takes unambiguous responsibility. Jordan's Principle, in its original scope, was one of the few mechanisms by which that intersection was addressed in practice. The narrowing of Jordan's Principle did not eliminate the intersection. It eliminated the mechanism of response.

Part 4: What this means for Indigenous disabled children specifically

The population

The Caring Society's documentation establishes that approximately 165,000 Status First Nations children and youth are affected by Canada's Jordan's Principle administration. Within that population, Indigenous children with disabilities represent a disproportionate share of Jordan's Principle applications — because their service needs are more numerous, more complex, and more subject to jurisdictional dispute. An Indigenous child with a rare genetic condition, an autism spectrum profile, a severe medical need, or a combination of these, requires coordinated services across health, education, and social supports. Each of those three categories sits at a different point on the federal-provincial responsibility map. Each interaction between the categories is a potential jurisdictional dispute. Jordan's Principle, in its fullest operational form, was designed to bypass those disputes and ensure the child received the service.

The February 2025 operational bulletin's narrowing of eligible categories fell disproportionately on children whose needs crossed the narrowed boundaries. A child whose disability required home modifications — widened doorways, wheelchair-accessible bathrooms, ramps — lost eligibility. A child whose disability required specialized therapeutic recreation, including programs categorized by the department as "sporting," lost eligibility. A child whose disability required educational support that the provincial school system could not or would not fund lost eligibility when the request was categorized as "school-related."

Specific documented cases

The documented record of Jordan's Principle denials since February 2025 includes:

- Hanlon Thompson, a 16-year-old from Ochapowace First Nation in southeastern Saskatchewan, whose mother Kayla Thompson has filed a discrimination complaint with the Canadian Human Rights Commission against Indigenous Services Canada. Hanlon Thompson was repeatedly denied Jordan's Principle funding for life-saving nutritional needs. (APTN News, 2025)
- The Cully family, whose daughter Scarlet, age 4, received applied behaviour analysis therapy for autism spectrum disorder in Thunder Bay, Ontario. The therapy was funded under Jordan's Principle. Father Patrick Cully stated that prior to the therapy, he was uncertain his daughter would ever be able to say "I love you." She is now talking. The Cully family is in federal court contesting the February 2025 operational bulletin. (CBC News, 2025)
- The Powless case, involving Joanne Powless, a grandmother from Oneida Nation of the Thames near London, Ontario, who applied for approximately \$200,000 through Jordan's Principle in 2022 for home-based care for her grandchildren. The application was denied following the February 2025 bulletin. The Federal Court ruled in July 2025 that Canada had acted "unreasonably" in denying a related home repair request. The Powless case remains before the Federal Court. (CBC News, Indigenous Watchdog, 2025)
- The Wolastoqey family in New Brunswick, whose autistic child's services were withdrawn following the February 2025 bulletin, leaving the family "in crisis mode" (APTN News, July 23, 2025).
- Multiple Yukon First Nations communities, where a five-year-old nutrition program feeding Indigenous children in rural communities ended in September 2025 after losing Jordan's Principle funding.
- Jordan's Principle regional offices themselves closing due to the funding cuts: the Jordan's Principle office in Brandon, Manitoba, closed in August 2025 after six months of operation.

David Taylor, the lawyer representing both the Cully and Powless families, observed in APTN News coverage: "Essentially, rather than looking at the children's actual needs, there's a categorical exception being applied at the outset. It's a kind of broad measure that has affected these two families in very different circumstances." The framework requires individualized assessment of each child's need under the substantive equality standard. The February 2025 bulletin, by applying categorical exclusions before individualized assessment, operates outside the framework the Canadian Human Rights Tribunal established.

Part 5: The \$70 billion settlement and what Alberta's own policy acknowledges

The 2025 class settlement

Separate from the Canadian Human Rights Tribunal proceedings, a class action lawsuit was filed against Canada on behalf of First Nations children harmed by the Jordan's Principle implementation failure and the First Nations Child and Family Services funding shortfall. In 2024 and 2025, the class action produced the First Nations Child and Family Services, Jordan's Principle and Trout Class Settlement Agreement. The settlement included \$23.4 billion in compensation for affected class members and additional amounts for long-term reform, totalling settlement obligations on Canada in excess of \$70 billion.

The first claims period opened March 10, 2025. The settlement represents, in financial terms, the largest compensation package Canada has paid for a sustained policy failure affecting First Nations children. The existence of the settlement is an operational acknowledgment by the federal government that the harm occurred. The ongoing non-compliance with Canadian Human Rights Tribunal orders on Jordan's Principle, even after the settlement, establishes that the settlement compensates past harm without remedying ongoing harm.

The Alberta administrative acknowledgment

The Government of Alberta's own Income and Employment Supports Training and Health Benefits (IESTHB) Policy Manual formally recognizes the First Nations Child and Family Services, Jordan's Principle and Trout Class Settlement Agreement as a "Harm Done" compensation payment under Ministerial Order 2026-004. Settlement payments received by class members are fully exempt from Alberta income support calculations.

The structural significance is the same as the analogous finding in Section 6 regarding the First Nations Drinking Water Advisory Class Actions Settlement. Alberta's own written policy incorporates, into its provincial administrative framework, the legal acknowledgment that federal policy failure in Jordan's Principle administration constitutes a "harm" for which settlement compensation is being paid. The province operationally recognizes the federal government's liability for the specific harm. That same province then operates, within its own jurisdiction, the school system layoffs and the provincial primary care collapse that compound the Jordan's Principle failure for Indigenous children in Alberta. The provincial acknowledgment of federal harm does not produce provincial action to prevent compounding of the harm.

Part 6: Jordan's Principle and the life course of Indigenous disability

This report documents the life course of disability for Indigenous Albertans. Section 1 addressed the historical production of disability through residential schools and Indian hospitals. Section 4 addressed housing conditions as upstream cause. Section 5 addressed contaminated land. Section 6 addressed water. Section 7 addressed the dual healthcare system. Section 8 now addresses what happens at the earliest stage of that life course: the Indigenous child whose complex medical, developmental, or disability needs place them in front of the Jordan's Principle application system before they can speak for themselves.

The Indigenous disabled Albertan who reaches AISH adjudication at age 18 and beyond has frequently come through the Jordan's Principle system as a child. Whether their application was approved, denied, delayed for two years in a backlog, or affected by the February 2025 operational bulletin shapes the medical record, the educational record, the developmental trajectory, and the family's financial capacity that precedes their eventual disability benefit application. A child denied applied behaviour analysis therapy at age four arrives at age 18 with different function, different developmental outcomes, and different documented medical history than a child whose therapy was approved. The provincial AISH adjudication process does not ask what happened to the applicant at age four. The federal Jordan's Principle decision at age four, however, has already shaped what the adjudication will see.

Dr. Cindy Blackstock's sustained argument — that Canada's non-compliance with Canadian Human Rights Tribunal orders represents an ongoing, documented, legally established pattern of discrimination against First Nations children — is the early-life version of the argument this report makes about the adult AISH and ADAP populations. The federal government's administrative failure at age four, compounded across the life course, becomes the disability profile at age 40 that enters the provincial benefit system. The remedy at age 40 is provincial. The harm at age four was federal. Neither government treats the other's failure as its own responsibility. The Indigenous person with a disability lives through both.

A child denied services at four is a teenager denied supports at fourteen is an adult denied disability benefits at forty. The administrative bulletins change. The population does not. The cumulative failure is not a series of separate failures. It is one sustained failure documented across the life course."

What this section establishes for the remainder of the report

Jordan's Principle is a legal obligation of the Government of Canada, established through Canadian Human Rights Tribunal rulings since 2016 and named after a five-year-old boy who died inside a jurisdictional dispute in 2005. Canada is in sustained legal non-compliance with those rulings. The February 10, 2025 operational bulletin narrowed the scope of services eligible under Jordan's Principle, producing a doubling of denial values in a single fiscal year, an \$83 million decline in approved services, and specific documented harms to named Indigenous disabled children whose cases are now in federal court. A \$70 billion-plus class settlement acknowledges the past harm. The non-compliance continues.

For Indigenous disabled children in Alberta specifically, the file compounds. The February 2025 bulletin's effect on school-related requests produced education assistant layoffs in Alberta and Saskatchewan school divisions. The provincial primary care collapse documented in Section 7 affects the physicians whose sign-off is required for Jordan's Principle medical supports. The

housing and water conditions documented in Sections 4, 5, and 6 produce the disabilities that bring Indigenous children into Jordan's Principle in the first place. And the population affected in childhood becomes the adult population this report's broader series has documented: AISH recipients facing ADAP transition, CDB clawback, appeal-rights stripping, and reassessment under standardized criteria that do not acknowledge the federal and provincial history that produced their disability.

Sections 9 through 15 will address child welfare, the justice system, MMIWG2S+, consultation failure, Treaty relationship and the Sovereignty Act, TRC Calls to Action 18 through 24, and the July 1, 2026 ADAP transition synthesis. The pattern documented in Section 8 — federal legal obligation, sustained federal non-compliance, compounding provincial administrative effect, and specific harm to named Indigenous individuals — recurs in each of those dimensions. The population is the same. The structure is the same. The documentation is the same. What changes across the sections is only the specific administrative program and the specific level of government through which the same pattern is expressed.

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